

25STCV00753 25STCV00753

County: los-angeles

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Department: 516

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Case Number: 25STCV00753 Hearing Date: September 23, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: September 23, 2026

Case Name: Romero v. Dunn, et al.

Case

No.: 25STCV00753

Matter: Motion - Other Re Appointment of Receiver

Moving

Party: Plaintiff David Romero

Responding Party: None

Tentative

Ruling: Plaintiff David Romero's

motion to appoint receiver is denied

Plaintiff

David Romero ("Plaintiff") and Dos Portillos, LLC ("Dos Portillos") filed this action against Defendants Gilbert Anthony Dunn ("Dunn"), an individual, Reginald Hobbs ("Hobbs"), an individual, and Does 1 through 50. The Complaint alleges four causes of action for: (1) conversion; (2) breach of contract; (3) breach of implied covenant of good faith and fair dealing; and (4) declaratory

relief.

Plaintiff

moves for a Court Order appointing a receiver to take control of the Subject Property, 2219 Pine Avenue, Long Beach, California 90806 ("Subject Property"). Dunn and Hobbs did not file an opposition.

Legal Standard

The Court

may appoint a receiver to enforce the judgment where the judgment creditor shows that, considering the interests of both the judgment creditor and the judgment debtor, the appointment of a receiver is a reasonable method to obtain the fair and orderly satisfaction of the judgment. (Civ. Code, § 708.620.) Code of Civil Procedure section 564, subdivision (b), states "[a] receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of that court, in the following cases: . . . (3) [a]fter judgment, to carry the judgment into effect." (Code Civ. Proc., § 564, subd. (b).)

"[T]he

appointment of a receiver is a drastic remedy to be employed only in exceptional circumstances." (City and County of San Francisco v. Daley (1993) 16 Cal.App.4th 734, 744 (Daley).) "[R]eceptors are often legal luxuries, frequently representing an extravagant cost to a losing litigant. When it appears that no reasonably certain benefit will result to one litigant, and a distinct disadvantage will result to another, courts should weigh carefully the propriety of appointing a receiver." (Ibid.) A receiver will not be appointed if another adequate remedy exists to protect the interest of the party requesting a receiver. (McNeil v. Graner (1949) 92 Cal.App.2d 371, 373.)

Analysis

Plaintiff

moves for a Court Order appointing a receiver because Hobbs and Dunn have exercised exclusive control over the Subject Property, and Hobbs has failed to distribute any proceeds to Plaintiff or provide any accounting regarding the Subject Property since 2019. In the alternative, Plaintiff moves to be appointed as interim manager instead of professional receivership.

Plaintiff specifically

requests that a receiver be authorized to:

a.

Collect rents and income;

b.

Pay ordinary and necessary operating expenses;

c.

Maintain appropriate insurance;

d.

Preserve and maintain the Property;

e.

Obtain and review Property-related books and records;

f.

Maintain complete financial records;

g.

Provide periodic reports to the Court and the parties;

h.

Preserve net income;

i.

Receive and preserve any net sale proceeds; and

j.

Perform such additional acts as are reasonably
necessary to protect the Property and the parties' interests.

(Mot., 11:15-26.)

As an

initial matter, Plaintiff cites Code of Civil Procedure section 564,
subdivision (b)(3); however, no judgment has been entered; thus, subdivision
(b)(3) is inapplicable. (See Daley, *supra*, 16 Cal.App.4th at p.

743.) Additionally, “Where an injunction will protect all the rights to which the applicant for the appointment of a receiver appears to be entitled, a receiver will not be appointed.” (Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp. (1953) 116 Cal.App.2d 869, 873.)

Plaintiff

argues that the anticipated sale of the Subject Property requires that the Court appoint a receiver. However, the Court finds that other remedies are available to him that can address Plaintiff's concern. Similarly, Hobb's failure to comply with the June 4, 2026, Court Order is not a basis to appoint a receiver. Plaintiff has other remedies available for Hobb's decision not to participate in discovery.

Plaintiff

has not presented legal authority to support his arguments that a receiver is warranted. Moreover, Plaintiff has not provided any legal authority to appoint him as an “interim manager.” (Mot., 8:8-11:10.)

Thus,

Plaintiff's motion is denied in its entirety.

Conclusion

Plaintiff

David Romero's motion to appoint a receiver is denied.